

Bheekam Singh v. State of U.P. — instalment payment under clause 6.14

High Court of Judicature at Allahabad · Division Bench · 11 January 2022 · unreported · WRIT - C No. - 33280 of 2021 · **Writ disposed; petitioner may apply under clause 6.14; licensee to consider in accordance with law.**

HEADNOTE

A consumer who seeks a mandamus that the distribution licensee accept an electricity bill in easy instalments under a one-time settlement scheme is relegated to paragraph 6.14 of the U.P. Electricity Supply Code, 2005. The High Court expressed no opinion on merits, granted liberty to apply to the licensee within two weeks, and directed that any such request be considered and decided in accordance with law within one week.

FACTUAL SUMMARY

Bheekam Singh filed a writ petition in the Allahabad High Court seeking a mandamus that respondent no. 2 accept payment of his electricity bill on Account No. 771711155482 in easy instalments pursuant to a one-time settlement scheme. The Standing Counsel informed the Court that paragraph 6.14 of the U.P. Electricity Supply Code, 2005 already allows a consumer to apply for payment of electricity dues in instalments. The petitioner had come to the writ court for that facility rather than applying to the licensee under the Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment payment of electricity dues

HOLDING

Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 already permits a consumer to apply for payment of electricity dues in instalments. A writ seeking mandamus that the licensee accept a bill in easy instalments under a one-time settlement scheme is disposed of without opinion on merits, with liberty to approach the licensee under paragraph 6.14 within two weeks; if so approached, the licensee shall consider the request and pass appropriate orders in accordance with law within one week. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated paragraph 6.14 as the Code pathway for instalment payment of electricity dues and left the consumer to apply to the licensee under that paragraph, directing consideration in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CLAIM TO INSTALMENTS UNDER A ONE-TIME SETTLEMENT SCHEME

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1